

Lalit Ram Tripathi v. State of U.P.

Allahabad High Court · Division Bench · 31 October 2014 · Writ-C No. 57774 of 2014 · **Writ dismissed; alternative remedy under Clause 6.5.**

HEADNOTE

A writ challenging a recovery certificate was dismissed because Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 furnishes an alternative remedy, which the Court described as an appeal.

FACTUAL SUMMARY

The petitioner invoked the writ jurisdiction of the Allahabad High Court against a recovery certificate, arraying the State of Uttar Pradesh and three other respondents. The order does not set out the amount of the certificate, the billing period, or the named distribution licensee. The Division Bench did not try the underlying electricity dues. It considered only whether the petition was maintainable in the face of the mechanism under the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery-certificate-alternative-remedy

HOLDING

Against a recovery certificate the appropriate remedy is an appeal under Clause 6.5 of the Electricity Supply Code, 2005; a writ petition is dismissed on that alternative remedy. ¶ 1

FLAG Court called Clause 6.5 an 'appeal' against a recovery certificate; 6.5 is the billing-objection route.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE

Writ dismissed solely for alternative remedy; the certificate was not examined. ¶ 1